

IN THE SENATE

SENATE BILL NO. 1307

BY RESOURCES AND ENVIRONMENT COMMITTEE

AN ACT

RELATING TO DELIVERY OF WATER; REPEALING CHAPTER 9, TITLE 42, IDAHO CODE, RELATING TO DISTRIBUTION OF WATER TO CONSUMERS; AMENDING CHAPTER 12, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1210, IDAHO CODE, TO ESTABLISH PROVISIONS FOR THE DAMAGE OF HEADGATES; AMENDING CHAPTER 12, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1211, IDAHO CODE, TO ESTABLISH LIABILITY FOR THE WASTE OF WATER; REPEALING SECTION 42-1301, IDAHO CODE, RELATING TO LATERAL DITCH WATER USERS' ASSOCIATIONS ORGANIZATION; REPEALING SECTION 42-1302, IDAHO CODE, RELATING TO LATERAL MANAGERS; REPEALING SECTION 42-1303, IDAHO CODE, RELATING TO LATERAL DITCHES; REPEALING SECTION 42-1304, IDAHO CODE, RELATING TO ASSESSMENTS; REPEALING SECTION 42-1305, IDAHO CODE, RELATING TO DELINQUENT USERS; REPEALING SECTION 42-1306, IDAHO CODE, RELATING TO THE COLLECTION AND DISBURSEMENT OF FUNDS; REPEALING SECTION 42-1307, IDAHO CODE, RELATING TO ACTION FOR ASSESSMENTS AND ATTORNEYS' FEES; REPEALING SECTION 42-1308, IDAHO CODE, RELATING TO APPOINTMENT OF LATERAL MANAGERS BY THE DIRECTOR OF THE DEPARTMENT OF WATER RESOURCES; REPEALING SECTION 42-1309, IDAHO CODE, RELATING TO THE ASSOCIATION'S ABILITY TO BORROW MONEY; REPEALING SECTION 42-1313, IDAHO CODE, RELATING TO THE DEFINITION OF WATER USERS; AMENDING CHAPTER 13, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1301, IDAHO CODE, TO DEFINE TERMS; AMENDING CHAPTER 13, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1302, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE LATERAL WATER USERS' ASSOCIATION ORGANIZATION, THE BOARD OF DIRECTORS, AND THE LATERAL MANAGER; AMENDING CHAPTER 13, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1303, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE LATERAL MANAGER; AMENDING CHAPTER 13, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1304, IDAHO CODE, TO ESTABLISH PROVISIONS FOR ALTERNATIVE APPOINTMENT OF THE LATERAL MANAGER BY A WATER DELIVERY ORGANIZATION; AMENDING CHAPTER 13, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1305, IDAHO CODE, TO ESTABLISH PROVISIONS FOR ALTERNATIVE APPOINTMENT OF THE LATERAL MANAGER BY THE DIRECTOR OF THE DEPARTMENT OF WATER RESOURCES; AMENDING CHAPTER 13, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1306, IDAHO CODE, TO ESTABLISH PROVISIONS FOR THE MAINTENANCE AND REPAIR OF LATERALS BY THE ASSOCIATION; AMENDING CHAPTER 13, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1307, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING ASSESSMENTS; AMENDING CHAPTER 13, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1308, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING DELINQUENT USERS; AMENDING CHAPTER 13, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1309, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE COLLECTION AND DISBURSEMENT OF FUNDS; AMENDING CHAPTER 13, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1310, IDAHO CODE, TO ESTABLISH PROVISIONS FOR ACTIONS FOR COLLECTION OF DELINQUENT ASSESSMENTS AND ATTORNEY'S

FEES; AMENDING SECTION 42-1311, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE AMOUNT OF ASSESSMENTS; AMENDING CHAPTER 13, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1312, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE ASSOCIATION'S AUTHORIZATION TO BORROW MONEY OR MORTGAGE OR PLEDGE ASSETS; AMENDING SECTION 42-1312, IDAHO CODE, TO REVISE PROVISIONS REGARDING WITHDRAWAL FROM A LATERAL WATER USERS' ASSOCIATION AND TO REDESIGNATE THE SECTION; AMENDING SECTION 42-1310, IDAHO CODE, TO REVISE PROVISIONS REGARDING WATER DELIVERY ORGANIZATIONS MAINTAINING AND REPAIRING LATERALS AND TO REDESIGNATE THE SECTION; AMENDING CHAPTER 13, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1315, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING DIVERSION STRUCTURES AND MEASURING DEVICES; AMENDING SECTION 18-4310, IDAHO CODE, TO REVISE PROVISIONS REGARDING INTERFERENCE WITH THE DELIVERY OF WATER; AMENDING SECTION 43-404A, IDAHO CODE, TO REVISE A CODE REFERENCE AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 9, Title 42, Idaho Code, be, and the same is hereby repealed.

SECTION 2. That Chapter 12, Title 42, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 42-1210, Idaho Code, and to read as follows:

42-1210. INJURING DITCH OR HEADGATE -- TRIPLE DAMAGES. (1) No person shall, without the consent of a water delivery organization, as that term is defined in section 42-1301, Idaho Code, a lateral manager of a lateral water users' association established pursuant to chapter 13, title 42, Idaho Code, or a watermaster of a water district established pursuant to chapter 6, title 42, Idaho Code, wrongfully:

(a) Divert any water from the ditch or channel where it was placed, caused to be, or left to run by the water delivery organization, a lateral manager, a watermaster, or an authorized representative thereof;

(b) Shut or open any ditch, gate, pump, diversion structure, or dam with intent to:

(i) Divert any water without a right to do so; or

(ii) Deprive any person of the use of the water during any part of the time that such person is entitled to the use of such water;

(c) Cut or alter any ditch; or

(d) Break or destroy any gate, pump, diversion structure, or dam.

(2) A person who violates the provisions of this section shall be liable in a civil action to the person injured at three (3) times the actual damage sustained in consequence of any such wrongful act or acts.

SECTION 3. That Chapter 12, Title 42, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 42-1211, Idaho Code, and to read as follows:

1 42-1211. LIABILITY FOR WASTE OF WATER. Any person entitled to the use
 2 of water from any ditch, canal, or conduit who willfully or wantonly wastes
 3 water in a manner that causes injury or damage to another person's real prop-
 4 erty shall be liable in a civil action to the owner of the injured or damaged
 5 real property.

6 SECTION 4. That Section [42-1301](#), Idaho Code, be, and the same is hereby
 7 repealed.

8 SECTION 5. That Section [42-1302](#), Idaho Code, be, and the same is hereby
 9 repealed.

10 SECTION 6. That Section [42-1303](#), Idaho Code, be, and the same is hereby
 11 repealed.

12 SECTION 7. That Section [42-1304](#), Idaho Code, be, and the same is hereby
 13 repealed.

14 SECTION 8. That Section [42-1305](#), Idaho Code, be, and the same is hereby
 15 repealed.

16 SECTION 9. That Section [42-1306](#), Idaho Code, be, and the same is hereby
 17 repealed.

18 SECTION 10. That Section [42-1307](#), Idaho Code, be, and the same is hereby
 19 repealed.

20 SECTION 11. That Section [42-1308](#), Idaho Code, be, and the same is hereby
 21 repealed.

22 SECTION 12. That Section [42-1309](#), Idaho Code, be, and the same is hereby
 23 repealed.

24 SECTION 13. That Section [42-1313](#), Idaho Code, be, and the same is hereby
 25 repealed.

26 SECTION 14. That Chapter 13, Title 42, Idaho Code, be, and the same is
 27 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 28 ignated as Section 42-1301, Idaho Code, and to read as follows:

29 42-1301. DEFINITIONS. As used in this chapter:

30 (1) "Delivery point" means the location where a water delivery organi-
 31 zation transfers the control of water to the water users on a lateral.

32 (2) "Lateral" means any ditch, canal, or conduit not operated and main-
 33 tained by a water delivery organization that is shared by water users enti-
 34 tled to receive water from:

35 (a) The same delivery point or points; or

36 (b) The same point or points of diversion from a natural water source.

37 (3) "Water delivery organization" means any entity recognized by Idaho
 38 law that operates water diversion and delivery facilities, including but not
 39 limited to a canal company, ditch company, irrigation company, irrigation
 40 district, reservoir company, reservoir district, or water company. A water

1 delivery organization does not include a lateral water users' association
2 created pursuant to this chapter.

3 (4) "Water user" means any person or entity entitled to receive water
4 through a lateral.

5 SECTION 15. That Chapter 13, Title 42, Idaho Code, be, and the same is
6 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
7 ignated as Section 42-1302, Idaho Code, and to read as follows:

8 42-1302. LATERAL WATER USERS' ASSOCIATION ORGANIZATION -- BOARD OF
9 DIRECTORS AND LATERAL MANAGER. (1) Water users who share a common lateral or
10 laterals shall be members of and shall constitute a water users' association
11 known as a lateral water users' association.

12 (2) The association shall meet annually between January 1 and the last
13 Monday in March of each year.

14 (a) The secretary-treasurer of the association shall call the annual
15 meeting by providing ten (10) days' written notice before the annual
16 meeting date.

17 (b) If for any reason the secretary-treasurer fails to call a meeting,
18 the annual meeting shall be held on the last Monday in March.

19 (3) At the annual meeting, the association shall:

20 (a) Elect a chair, vice chair, and a secretary-treasurer to serve as the
21 association's board of directors for one (1) year or until successors
22 are elected;

23 (b) Elect a lateral manager to manage the distribution of water; and

24 (c) Set the compensation of such elected officers.

25 (4) The association may:

26 (a) Adopt rules and regulations for the management of the lateral or
27 laterals and the delivery of water therefrom;

28 (b) By majority vote, if it is considered to be in the best interests of
29 the lateral water users' association, combine one (1) or more laterals
30 or abandon any lateral not in use; and

31 (c) Take any lawful action if doing so is in the best interests of the
32 association.

33 (5) Each water user in the association shall be entitled to cast one (1)
34 vote, in person, for each inch of water the water user is entitled to receive
35 from the lateral and a fractional vote equal to the fraction of an inch of
36 water the water user is entitled to receive. Corporations or other legally
37 recognized entities may designate a representative to cast the vote accord-
38 ing to this subsection.

39 SECTION 16. That Chapter 13, Title 42, Idaho Code, be, and the same is
40 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
41 ignated as Section 42-1303, Idaho Code, and to read as follows:

42 42-1303. LATERAL MANAGER -- DUTIES -- ALTERNATE METHODS OF ELECTION
43 OR APPOINTMENT. (1) The lateral manager shall ascertain and ensure that the
44 amount of water that each water user is entitled to receive is properly ap-
45 portioned and distributed for the succeeding irrigation season.

46 (2) Should a lateral water users' association fail to elect a lateral
47 manager or fix such manager's compensation at its annual meeting:

1 (a) The association's board of directors may elect a lateral manager
2 and set such manager's compensation; or

3 (b) The association's water users may select and appoint a lateral man-
4 ager by a written document that designates the manager, sets the compen-
5 sation, and is signed by a majority of water users from the association.

6 (3) Any lateral manager elected or appointed pursuant to subsection (2)
7 of this section or section 42-1302, Idaho Code, shall:

8 (a) Have documentation of their election or appointment recorded with:

9 (i) The manager, superintendent, or board of directors of the wa-
10 ter delivery organization that delivers water to the lateral's de-
11 livery point or points; or

12 (ii) The watermaster of the state water district appointed pur-
13 suant to section 42-605, Idaho Code, who delivers water to the
14 point or points of diversion from a natural water source; and

15 (b) Be treated as the lateral manager by the water delivery organiza-
16 tion for the succeeding irrigation season unless such organization is
17 notified by the lateral water users' association that a new lateral man-
18 ager has been elected or appointed.

19 (4) Any water delivery organization delivering water to a lateral de-
20 livery point or points may, upon providing reasonable notice, refuse deliv-
21 ery of water for failure of the water users to appoint or select a lateral
22 manager pursuant to this section or section 42-1302, Idaho Code.

23 SECTION 17. That Chapter 13, Title 42, Idaho Code, be, and the same is
24 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
25 ignated as Section 42-1304, Idaho Code, and to read as follows:

26 42-1304. LATERAL MANAGER -- APPOINTMENT BY WATER DELIVERY ORGANIZA-
27 TION. (1) If an association's water users do not elect or otherwise appoint
28 a lateral manager pursuant to section 42-1302 or 42-1303, Idaho Code, the
29 board of directors of the water delivery organization that delivers water to
30 the lateral may, upon the written request of one (1) or more of the associ-
31 ation's water users, appoint and set the compensation of a lateral manager.
32 Such compensation shall be assessed to the water users pursuant to this chap-
33 ter and may be collected in the same manner as other assessments are col-
34 lected by the water delivery organization.

35 (2) A lateral manager appointed pursuant to this section shall:

36 (a) Have and exercise all of the powers and perform all of the duties of
37 a lateral manager as described in this chapter; and

38 (b) Serve only for the period fixed by the appointment and not beyond
39 the remainder of the year in which the manager is appointed.

40 SECTION 18. That Chapter 13, Title 42, Idaho Code, be, and the same is
41 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
42 ignated as Section 42-1305, Idaho Code, and to read as follows:

43 42-1305. LATERAL MANAGER -- APPOINTMENT BY DIRECTOR OF DEPARTMENT
44 OF WATER RESOURCES. (1) If water users taking water from the same point or
45 points of diversion from any natural water source do not select or elect a
46 lateral manager as provided in this chapter, then the director of the depart-
47 ment of water resources may appoint and set the compensation of a lateral

1 manager upon the written request from one (1) or more of the association's
 2 water users alleging that water is not being apportioned and distributed
 3 properly among the water users from the lateral and that the rights of the
 4 water users are thereby being injured.

5 (2) A lateral manager appointed by the director pursuant to this sec-
 6 tion:

7 (a) May set and collect assessments as is necessary to achieve the
 8 proper allocation and distribution of water from laterals;

9 (b) Shall not borrow money or otherwise mortgage or pledge assets pur-
 10 suant to this chapter; and

11 (c) Shall serve only for the period fixed by the appointment and not be-
 12 yond the remainder of the year in which the manager is appointed.

13 (3) If the lateral is within a water district established pursuant to
 14 chapter 6, title 42, Idaho Code, the director shall, upon receipt of request
 15 for appointment of a lateral manager, advise the watermaster of the request
 16 and invite the watermaster to make recommendations concerning the need for
 17 appointment of a lateral manager and the nomination of a person to be ap-
 18 pointed if an appointment is necessary.

19 (4) The director shall make a reasonable effort to provide written no-
 20 tice of the request to all affected lateral water users. Except in the case
 21 of serious threat of imminent injury to person or property, the director
 22 shall allow fourteen (14) days for written response to the request.

23 (5) Based on a review of the request, the responses thereto, the rec-
 24 ommendations of the watermaster, and any investigation by the department
 25 of water resources, the director shall issue a decision either appointing a
 26 lateral manager or declining appointment of a lateral manager. Any person
 27 aggrieved by the director's decision shall be entitled to request a hearing
 28 before the director pursuant to section 42-1701A, Idaho Code.

29 SECTION 19. That Chapter 13, Title 42, Idaho Code, be, and the same is
 30 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 31 ignated as Section 42-1306, Idaho Code, and to read as follows:

32 42-1306. LATERALS -- REPAIRS, IMPROVEMENTS, AND MAINTENANCE --
 33 ASSESSMENT OF COSTS. (1) Water users shall keep their laterals in good condi-
 34 tion for carrying and distributing water.

35 (2) A water delivery organization may send written notices to water
 36 users or a lateral water users' association specifying any lateral mainte-
 37 nance deficiencies and a reasonable time to remedy the deficiencies. The
 38 water delivery organization may refuse delivery of water for failure of the
 39 water users or lateral water users' association to adequately maintain any
 40 lateral pursuant to the water delivery organization's notice.

41 (3) Water users or a lateral water users' association who neglect or
 42 refuse to perform the duties imposed on them by this section shall have no
 43 cause of action, including damages, against the water delivery organization
 44 for failure to deliver or distribute water to the lateral.

45 (4) The operation, improvement, repair, and maintenance of any lateral
 46 shall be under the direction of the association's board of directors. The
 47 board, with the lateral manager, shall examine laterals with maintenance de-
 48 ficiencies and prepare an estimate of the total cost to repair, operate, and
 49 maintain the lateral so that water can be properly delivered to the asso-

1 ciation's water users during the succeeding irrigation season. Such total
 2 costs, plus compensation for the board members and lateral manager, shall be
 3 assessed to each water user either:

4 (a) In the proportion which the quantity of water the water user is en-
 5 titled to receive from the lateral or laterals bears to the total quan-
 6 tity of water which all lateral water users' association water users are
 7 entitled to receive; or

8 (b) If the water user's land consists of a lot or lots within a city or
 9 village, then the assessment may be made on the basis of each lot, the
 10 same to be uniform on lots of the same size.

11 SECTION 20. That Chapter 13, Title 42, Idaho Code, be, and the same is
 12 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 13 ignated as Section 42-1307, Idaho Code, and to read as follows:

14 42-1307. ASSESSMENTS -- NOTICE -- PENALTIES FOR DELINQUENCY. (1) On or
 15 before April 15, an association's secretary-treasurer of the lateral water
 16 users' association shall assess each water user for that year. Such assess-
 17 ment shall be due and payable on May 1 each year. If the assessment is not
 18 paid by the water user on or before June 15 each year:

19 (a) A penalty of ten percent (10%) may be added thereto; and

20 (b) The total amount due shall then draw interest at the rate of ten per-
 21 cent (10%) per annum from June 15 until paid.

22 (2) The lateral water users' association may, by vote of the water users
 23 at any annual meeting, set dates for notice and payment of assessments and
 24 any related late fees that are different than those prescribed by this sec-
 25 tion, provided that each water user is always given at least fifteen (15)
 26 days' notice to make a payment.

27 SECTION 21. That Chapter 13, Title 42, Idaho Code, be, and the same is
 28 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 29 ignated as Section 42-1308, Idaho Code, and to read as follows:

30 42-1308. DELINQUENT WATER USERS NOT ENTITLED TO WATER. (1) No water
 31 user that has a delinquent assessment shall be entitled to demand or receive
 32 water from a lateral.

33 (2) The lateral manager shall not distribute any water to the water
 34 user that has a delinquent assessment except upon order of the association's
 35 board of directors, who may allow the delivery of water if the water user
 36 provides security satisfactory to the board for the payment of any such
 37 delinquent assessment.

38 SECTION 22. That Chapter 13, Title 42, Idaho Code, be, and the same is
 39 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 40 ignated as Section 42-1309, Idaho Code, and to read as follows:

41 42-1309. COLLECTION AND DISBURSEMENT OF FUNDS. (1) A lateral water
 42 users' association's lateral manager or secretary-treasurer shall collect
 43 all assessments made to the association and shall deposit the same into an
 44 account that is in the name of the association.

45 (2) The secretary-treasurer shall:

(a) Keep the funds of the association in the account and pay the costs and expenses for the management and operation of the laterals; and

(b) Upon the order of the association's board of directors, perform other duties as the association may prescribe.

SECTION 23. That Chapter 13, Title 42, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 42-1310, Idaho Code, and to read as follows:

42-1310. ACTION FOR COLLECTION OF DELINQUENT ASSESSMENTS -- ATTORNEY'S FEES. (1) A lateral water users' association's board of directors or lateral manager, or the water delivery organization associated therewith, may sue to collect any delinquent assessments that are due and unpaid in any court of competent jurisdiction.

(2) Reasonable attorney's costs and fees may be collected, as determined by the court, in addition to the full delinquent assessment and all penalties and interest associated therewith and costs incurred in attempting to collect such assessment.

SECTION 24. That Section 42-1311, Idaho Code, be, and the same is hereby amended to read as follows:

42-1311. AMOUNT AND LIEN OF ASSESSMENTS BY LATERAL WATER USERS' ASSOCIATION. (1) The amount assessed against each water user, together with any penalties and interest, shall be a first and prior lien, except as to a lien related to taxes and assessments of a water delivery organization, upon the water user's land that is entitled to receive water from the point or points of delivery in the canal or reservoir, or from the point or points of diversion from waters of the state, that supplies the association's lateral or ditch.

(2) ~~The lien shall be recorded and collected in accordance with pursuant to section 55-3207, Idaho Code, governing homeowner's association liens, except that the lien may be continued in force for a period of time not to exceed three (3) years and may be extended not to exceed three (3) additional years. The lien provided for in this section shall have priority according to its date of recordation, except as to other liens described in titles 42 and 43, Idaho Code.~~

SECTION 25. That Chapter 13, Title 42, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 42-1312, Idaho Code, and to read as follows:

42-1312. LATERAL WATER USERS' ASSOCIATION AUTHORIZED TO BORROW MONEY OR TO MORTGAGE OR PLEDGE ASSETS. (1) A lateral water users' association may:

(a) Borrow money to repay a loan;

(b) Mortgage or pledge any assets of the association as security for a loan; and

(c) Levy assessments to repay a loan.

(2) Before any money can be borrowed or any mortgage or pledge can be made or entered into, the association's secretary-treasurer shall send a written notice to all water users to inform the water users that an election

1 is being called to determine whether or not the association, through its
 2 chair and secretary-treasurer, may borrow money or mortgage or pledge its
 3 assets. Such notice shall include a brief description of the proposed action
 4 and the date, time, and place of such election, which shall be held at least
 5 ten (10) days after the date of the secretary-treasurer's notice.

6 (3) The election shall be determined by a majority vote of the water
 7 users present at the election in accordance with section 42-1302(5), Idaho
 8 Code.

9 SECTION 26. That Section 42-1312, Idaho Code, be, and the same is hereby
 10 amended to read as follows:

11 ~~42-1312.~~ 42-1313. WITHDRAWAL FROM LATERAL WATER USERS' ASSOCIA-
 12 TION. (1) A water user may withdraw from ~~the a water users'~~ association by
 13 providing written notice and proof that the water user's land is no longer
 14 entitled to receive water from the water delivery organization and the point
 15 or points of delivery in the canal or reservoir, or from the point or points
 16 of diversion from waters of the state, that supplies the association's lat-
 17 eral or ditch.

18 (2) Withdrawal shall not affect any delinquent assessment or lien
 19 recorded against the water user's land pursuant to section 42-1311, Idaho
 20 Code, prior to this chapter that accrued before the user's withdrawal.

21 SECTION 27. That Section 42-1310, Idaho Code, be, and the same is hereby
 22 amended to read as follows:

23 ~~42-1310.~~ 42-1314. LATERAL DITCHES WATER DELIVERY ORGANIZATIONS --
 24 REPAIRS, IMPROVEMENTS, AND MAINTENANCE BY IRRIGATION DELIVERY ENTITIES OF
 25 LATERALS. (1) ~~In the event that a water users' association of lateral or lat-~~
 26 ~~erals has not been constituted on a particular lateral or distributing ditch~~
 27 If a lateral water users' association has not elected a board of directors or
 28 appointed a lateral manager pursuant to this chapter, any individual water
 29 user taking water from a canal or reservoir to be conveyed to their respec-
 30 tive premises for any distance through such lateral or distributing ditch
 31 may authorize the irrigation delivery entity lateral may authorize the water
 32 delivery organization providing water to the lateral or ditch to perform any
 33 necessary repairs, improvements, or maintenance to the lateral or ditch.

34 (2) ~~The irrigation delivery entity may agree to perform such work only~~
 35 ~~if it has duly adopted a bylaw authorizing such work to be done for its in-~~
 36 ~~dividual water users, or adopts water delivery organization may perform the~~
 37 requested work only if the organization's board has adopted a resolution au-
 38 thorizing the work.

39 (3) ~~In performing such work, the irrigation delivery entity The water~~
 40 delivery organization shall have the same rights and privileges as the wa-
 41 ter user authorizing the work to enter the land across which the associated
 42 right-of-way extends, for the purposes of cleaning, maintaining and repair-
 43 ing the lateral or ditch, and to perform such work, as does the individual
 44 water user authorizing the work to clean, maintain, repair, and perform such
 45 other work as may be done by the authorizing water user.

46 (4) By performing such work, the ~~irrigation delivery entity water~~
 47 delivery organization does not assume ownership of the lateral ~~or ditch,~~

1 ~~or responsibility for~~ or incur liability for any injury to person or prop-
 2 erty caused by an act or omission of the ~~individual~~ authorizing water user
 3 ~~authorizing the work, or of any other person.~~

4 (5) When such work has been authorized, the ~~irrigation entity shall as-~~
 5 ~~sess the individual~~ water delivery organization may assess the respective
 6 authorizing water user or users for the annual cost of any necessary repairs,
 7 improvements, or maintenance performed on the lateral ~~or ditch~~, in addition
 8 to the assessments that are levied by the water delivery organization for the
 9 delivery of water to the ~~individual~~ water user or users, and the same provi-
 10 sions shall apply with regard to delinquent assessments as in the case of as-
 11 sessments levied by the water delivery organization for the delivery of wa-
 12 ter.

13 (6) Nothing in this section shall affect the authority of a lateral wa-
 14 ter users' association of ~~lateral or laterals~~ from assessing its members for
 15 work authorized ~~under~~ pursuant to this chapter.

16 SECTION 28. That Chapter 13, Title 42, Idaho Code, be, and the same is
 17 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 18 ignated as Section 42-1315, Idaho Code, and to read as follows:

19 42-1315. WATER DELIVERY ORGANIZATIONS TO FURNISH DIVERSION STRUC-
 20 TURES AND MEASURING DEVICES. (1) Each water delivery organization shall
 21 provide the necessary diversion structures and measuring devices at deliv-
 22 ery points to control and measure the quantity of water being delivered to
 23 water users served by the water delivery organization, unless the bylaws or
 24 controlling documents of the water delivery organization provide otherwise.

25 (2) Measuring devices shall comply with standards approved by the de-
 26 partment of water resources.

27 SECTION 29. That Section 18-4310, Idaho Code, be, and the same is hereby
 28 amended to read as follows:

29 18-4310. NEGLECT TO DELIVER WATER -- INTERFERENCE WITH DELIVERY. Any
 30 ~~superintendent or any person having control or charge of the said ditch,~~
 31 ~~canal or conduit, who shall wilfully neglect or refuse to deliver water as~~
 32 ~~provided in chapter 9, of title 42, or person or persons who shall prevent~~
 33 ~~or interfere~~ Any person who willfully and wrongfully prevents or interferes
 34 with the proper delivery of water to the person or persons having a right
 35 thereto, shall be guilty of a misdemeanor; ~~and the owner or owners of such~~
 36 ~~ditch, canal or conduit shall be liable in damages to the person or persons~~
 37 ~~deprived of the use of water to which they were entitled as provided in said~~
 38 ~~chapter 9.~~

39 SECTION 30. That Section 43-404A, Idaho Code, be, and the same is hereby
 40 amended to read as follows:

41 43-404A. CONTRACTS OF PAYMENT FOR REHABILITATION. If the reconstruc-
 42 tion, rehabilitation, or replacement of dams, structures, or works deter-
 43 mined necessary in accordance with section 43-401A, Idaho Code, involves a
 44 dam, structure, or works which also provide water storage, diversion, or de-
 45 livery of water to water users or water user organizations for the use of said

1 water on lands not within the boundaries of the district proposing the im-
2 provements, the district (hereinafter referred to as constructing district)
3 may contract with such water users or water user organizations for payment
4 by them, over a period of time not to exceed the period of any bonded indebt-
5 edness incurred by the constructing district to finance construction of the
6 improvements, of a proportionate share of the costs of such improvements,
7 including design, construction, land acquisition, and other related costs,
8 to include interest on the unpaid balance of said proportionate share of such
9 water users or water user organization at a rate equal to the average rate of
10 interest payable by the constructing district on any bonded indebtedness in-
11 curred by it in financing the improvements.

12 If the water user organization contracting for payment of a propor-
13 tionate share of the costs of the improvements is an irrigation district
14 (hereinafter referred to as contracting district) organized pursuant to ti-
15 tle 43, Idaho Code, the board of directors of such district shall negotiate a
16 proposed contract with the constructing district. Thereafter, the question
17 of entering into the proposed contract shall be submitted to the electors of
18 such contracting district in a manner substantially in conformance with the
19 provisions of section 43-401, Idaho Code. If at least two-thirds (2/3) of
20 the electors approve the execution of the contract, the board shall confirm
21 the proceeding as provided in connection with a bond issue, and following
22 confirmation, the board shall execute the contract and thereafter an annual
23 assessment to provide revenue for payment of the obligation and interest
24 thereon shall be levied and collected on lands within the contracting dis-
25 trict in the manner provided for assessment for payment of bonds and interest
26 thereon. The provisions of section 43-404, Idaho Code, shall be applicable
27 to apportionment of benefits accruing under the terms of said contract.

28 If the water user organization contracting for payment of a proportion-
29 ate share of the costs of improvements is an operating company entitled to a
30 lien for maintenance charges under chapter 22, title 42, Idaho Code, it shall
31 annually assess and collect the costs of meeting its obligations under the
32 contract as a toll, assessment, or charge under chapter 22, title 42, Idaho
33 Code.

34 If the water user organization contracting for payment of a proportion-
35 ate share of the costs of the improvements is a lateral ditch water user as-
36 sociation organized and operating under chapter 13, title 42, Idaho Code,
37 the annual costs of meeting the association's obligation under the contract
38 shall be included in the assessment made ~~under section 42-1303, Idaho Code~~
39 pursuant to that chapter, and chapter 13, title 42, Idaho Code, shall apply
40 to the collection and disbursement of said assessment.

41 SECTION 31. An emergency existing therefor, which emergency is hereby
42 declared to exist, this act shall be in full force and effect on and after
43 July 1, 2026.